

# HOUSE . . . . . No. 3872

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Kelly W. Pease*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act expanding the mission of the Office of the Veteran Advocate.

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PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:                | DATE ADDED:      |
|------------------------------|----------------------------------|------------------|
| <i>Kelly W. Pease</i>        | <i>4th Hampden</i>               | <i>1/7/2025</i>  |
| <i>Dennis C. Gallagher</i>   | <i>8th Plymouth</i>              | <i>1/9/2025</i>  |
| <i>Joan Meschino</i>         | <i>3rd Plymouth</i>              | <i>3/17/2025</i> |
| <i>James C. Arena-DeRosa</i> | <i>8th Middlesex</i>             | <i>4/5/2025</i>  |
| <i>Bruce E. Tarr</i>         | <i>First Essex and Middlesex</i> | <i>4/5/2025</i>  |
| <i>Adam J. Scanlon</i>       | <i>14th Bristol</i>              | <i>9/17/2025</i> |

# HOUSE . . . . . No. 3872

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By Representative Pease of Westfield, a petition (accompanied by bill, House, No. 3872) of Kelly W. Pease and Dennis C. Gallagher relative to the mission of the Office of the Veteran Advocate. Veterans and Federal Affairs.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act expanding the mission of the Office of the Veteran Advocate.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 115B: OFFICE OF THE MILITARY AND VETERAN ADVOCATE

2           Section 1: Definitions

3           Section 1. As used in this chapter, the following words shall, unless the context clearly  
4 requires otherwise, have the following meanings:

5           “Active Duty” shall include (1) full time service; and (2) any period of active or inactive  
6 duty for training during which the individual was disabled or died.

7           “Armed Forces” shall include army, marine corps, navy, air force, space force, coast  
8 guard and any additional military service created by the U.S. Department of Defense including  
9 reserve components thereof.

10          [ Definition of "Executive agency" effective until May 30, 2023. For text effective May  
11 30, 2023, see below.]

"Executive agency", a state agency within the office of the governor, including the executive office of education, the executive office of public safety and security, executive office of health and human services, and their constituent agencies, the Massachusetts interagency council on housing and homelessness and the executive office of housing and economic development, and their constituent agencies.

[ Definition of "Executive agency" as amended by 2023, 7, Sec. 245 effective May 30, 2023. See 2023, 7, Sec. 298. For text effective until May 30, 2023, see above.]

"Executive agency", a state agency within the office of the governor, including the executive office of education, the executive office of public safety and security, executive office of health and human services, and their constituent agencies, the Massachusetts interagency council on housing and homelessness and the executive office of housing and livable communities, and their constituent agencies.

"Nominating committee", the nominating committee established in section 3.

"Office", the office of the veteran advocate established in section 2.

"Veteran advocate", the veteran advocate appointed under section 3.

"Uniformed Services" shall include armed forces, commissioned corps of the public health service and commissioned corps of the national oceanic and atmospheric administration.

## Section 2: Office of the military and veteran advocate

Section 2. There shall be an office of the military and veteran advocate, which shall be independent of any supervision or control by any executive agency. The office shall provide overarching support to the uniformed service and to all veterans and their families and serve as a

liaison and advocate on behalf of the servicemember and veteran population residing in the Commonwealth to all relevant federal agencies. The office shall: (i) ensure that veterans and servicemembers in the care of the commonwealth or receiving services under the supervision of an executive agency in any public or private facility receive humane and dignified treatment at all times, with full respect for the veterans' or servicemembers' personal dignity and right to privacy; (ii) ensure that veterans and servicemembers in the care of the commonwealth or receiving services under the supervision of an executive agency in any public or private facility receive timely, safe and effective services; (iii) aid and coordinate with local veterans service agents to ensure veterans receive all available state and federal benefits; (iv) examine, on a system-wide basis, the care and services that executive agencies provide veterans and servicemembers; (v) advise the public and those at the highest levels of state government about how the commonwealth may improve its services to and for veterans, servicemembers, and their families; (vi) develop internal procedures appropriate for the effective performance of the office's duties; (vii) assist in developing procedures for the executive agencies to best serve the veteran and servicemember community;; and (viii) investigate incidents where a veteran suffered a fatality, near fatality or serious bodily or emotional injury while receiving services from an executive agency, or circumstances which result in a reasonable belief that an executive agency or a constituent agency failed in its duty to care for a veteran and, as a result, the veteran was at imminent risk of, or suffered serious bodily or emotional injury or death.

### Section 3: Military and Veteran advocate; nomination and appointment; term; removal

Section 3. The office of the military and veteran advocate shall be under the direction of the military and veteran advocate. The military and veteran advocate shall be the administrative head of the office and shall devote full time to the duties of the office. The military and veteran

advocate shall be appointed by a majority vote of the attorney general, the state auditor and the governor from a list of 3 nominees submitted by a nominating committee to recommend a military and veteran advocate. The nominating committee shall consist of: the secretary of health and human services, or a designee, who shall serve as chair; the secretary of veterans' services, or a designee; the secretary of public safety, or a designee; the commissioner of mental health, or a designee; the house and senate chairs of the joint committee on veterans and federal affairs; the adjutant general of the Massachusetts national guard; a representative of the veterans of foreign wars department of Massachusetts; a representative of the American legion department of Massachusetts;

the chair of the board of trustees of the veterans' home in the city of Chelsea; and the chair of the board of trustees of the veterans' home in the city of Holyoke. The nominating committee shall submit salary recommendations for the candidates commensurate with the candidates' experience and other similar state positions. The work of the nominating committee shall be coordinated by the executive office of health and human services.

Any person appointed to the position of military and veteran advocate shall be selected without regard to political affiliation and on the basis of integrity and demonstrated ability in military culture and veteran welfare, justice, auditing, law, health care, management analysis, public administration and investigation or criminal justice administration. The military and veteran advocate may, subject to appropriation, appoint such other personnel as the military and veteran advocate deems necessary for the efficient management of the office.

The military and veteran advocate shall serve for a term of 5 years. In the case of a vacancy in the position of the military and veteran advocate, a successor shall be appointed in the

78 same manner for the remainder of the unexpired term. No person shall be appointed as military  
79 and veteran advocate for more than 2 full terms.

80 The military and veteran advocate may be removed from office for cause by a majority  
81 vote of the attorney general, the state auditor and the governor. Such cause may include  
82 substantial neglect of duty, gross misconduct or conviction of a crime. The cause for removal of  
83 the military and veteran advocate shall be stated in writing and shall be sent to the clerks of the  
84 senate and house of representatives and to the governor at the time of removal and shall be a  
85 public document.

#### 86 Section 4: Annual report

87 Section 4. The military and veteran advocate shall report annually to the governor, the  
88 senate president, the speaker of the house of representatives, the senate and the house committees  
89 on ways and means, and the joint committee on veterans and federal affairs on the activities of  
90 the office, including, but not limited to, an analysis of the delivery of services to veterans,  
91 servicemember and their families and recommendations for changes in agency procedures which  
92 would enable the commonwealth to better provide services to and for veterans, servicemembers  
93 and their families and priorities for implementation of those changes to services. The report shall  
94 be made public on the website of the veteran advocate.